

Smt. Chandrani Bande vs Dr. Dilip Kumar Bande on 16 August, 2023

1

NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

WP(227) No. 224 of 2023

Smt. Chandrani Bande W/o Dr. Dilip Bande Aged About 33 Years R/o H-5
Chhirpani Colony, Bodla, Police Station - Bodla, District Kabirdham
Chhattisgarh.

----- Petitioner

Versus

Dr. Dilip Kumar Bande S/o Shri Dilo Ram, Aged About 38 Years R/o F-30,
River View Colony, Koni, Police Station - Koni, District Bilaspur
Chhattisgarh.

----- Respondent

For the Petitioner

: Ms. Rajni Soren, Advocate.

For the Respondent

: Shri Sanjeev Sahu, Advocate.

Hon'ble Shri Justice Rakesh Mohan Pandey

ORDER

16.08.2023

1. The petitioner has challenged the order dated 14.12.2022 passed by the Principal Judge, Family Court, Bilaspur in C.S. No. 452-A of 2021 whereby an application moved by the petitioner/ wife under Section 24 of the Hindu Marriage Act for grant of maintenance pendente lite and expenses of proceedings has been rejected.

2. The facts of the present case are that the respondent/ husband has filed a suit for dissolution of marriage under Section 13(1) (i-a) of the Hindu Marriage Act which is pending consideration before the learned Family Court. During the pendency of that petition, the petitioner/ wife moved an application under Section 24 of the Hindu Marriage Act for grant of maintenance pendente lite and expenses of proceedings, which has been rejected by the learned Family Court vide order dated 14.12.2022.

3. Learned counsel for the petitioner would submit that the respondent/ husband is working as Assistant Professor at Guru Ghasidas Central University and he is getting Rs.79,000/- per month whereas, the petitioner/ wife is working on the post of Deputy Ranger and she is getting Rs.38,800/- per month. She would further submit that she has liability of two children also who are studying in Class-III and Nursery. She would also submit that the Family Court has committed error of law by rejecting the application.

4. On the other hand, learned counsel for the respondent would submit that the respondent/ husband is an Assistant Professor but he has liability of his old parents and he maintains his children. He would submit that the respondent used to pay tuition fees and other expenses to his children. Thus, he would submit that the petition preferred by the petitioner deserves to be dismissed.

5. I have heard learned counsel for the parties and perused the documents.

6. From perusal of the documents, it appears that a civil suit has been filed for dissolution of marriage by the respondent/ husband which is pending for consideration before the learned Family Court. The petitioner/ wife moved an application under Section 24 of the Hindu Marriage Act for grant of maintenance pendente lite and expenses of proceedings. Learned Family Court rejected the application on the ground that the petitioner/ wife is posted as Deputy Ranger and she is getting salary of Rs.38,000/- per month.

7. Section 24 of Hindu Marriage Act reads as under:

"24 Maintenance pendente lite and expenses of proceedings. Where in any proceeding under this Act it appears to the court that either the wife or the husband, as the case may be, has no independent income sufficient for her or his support and the necessary expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable:

Provided that the application for the payment of the expenses of the proceeding and such monthly sum during the proceeding, shall, as far as possible, be disposed of within sixty days from the date of service of notice on the wife or the husband, as the case may be."

8. While deciding the application under Section 24 of the Hindu Marriage Act, the Family Court has to consider the income of the parties, need of the petitioner and paying capacity of the parties. In the present case, the petitioner/ wife has liability of two children who are staying with her and studying in Class-III and Nursery and further, she is getting salary of Rs.38,800/- per month whereas, the respondent/ husband is getting salary of Rs.79,000/- per month, therefore, in the opinion of this Court, the Court below has committed error of law in rejecting the application moved by the petitioner.

9. Consequently, the application is partly allowed and the respondent is directed to pay Rs.5,000/- on each date of hearing to the petitioner/ wife as maintenance pendente lite and expenses of proceedings.

10. With the aforesaid observation, this petition is disposed of. This order will be effective from the date of filing of the application.

Sd/-

(Rakesh Mohan Pandey) Judge Nimmi